

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KEVIN GONZALEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD DETECTIVE BRENDA VARGAS (Shield 5924), Index No. 511821/19

Defendants.

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Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint
herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD Detective Brenda Vargas (Shield 5924) (hereinafter "Vargas") was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Vargas was acting within the course and scope of her employment with the NYPD.

7. That at all times herein mentioned, Vargas was acting under color of state law.

THE FACTS

8. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

9. That on or about February 28, 2018, at or around plaintiff's residence at 338 Forbell Street, Brooklyn, NY, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD (hereinafter referred to collectively as "the officers"), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit a crime, criminal offense, or violation, and without otherwise being justified, forcibly detained, handcuffed, and arrested plaintiff.

10. That the aforementioned arrest was undertaken based on the urging, authorization, and directive of Vargas.

11. That thereafter the officers, without a warrant or other legal justification, continued physically to detain and imprison plaintiff and/or caused plaintiff to be detained and imprisoned at various other locations, including a police precinct.

12. That once plaintiff was inside the precinct, Vargas and the officers staged a sham line up in an attempt to coerce plaintiff into "confessing" to crimes that he did not commit.

13. That on or about February 28, 2018, the City, by and through its agents,

servants and/or employees, including Vargas and the officers, initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with crimes of which he was innocent and of which Vargas and the officers knew plaintiff to be innocent.

14. That in support of the aforesaid prosecution, Vargas signed and executed a Criminal Court Complaint in which she made sworn accusations against plaintiff that were false and that Vargas knew were false.

15. That in support of the aforesaid prosecution, Vargas also fabricated evidence by making statements to the Office of the District Attorney that she knew were false.

16. That among the false statements made by Vargas to the Office of the District Attorney were that a) Vargas was informed by a third person that on January 22, 2018 plaintiff entered a store and removed several items from the store without paying for them; b) Vargas was informed by a third person that on January 23, 2018 plaintiff entered a store and removed several items from the store without paying for them; c) Vargas observed on video surveillance that on February 9, 2018 plaintiff entered a store and removed several items from the store without paying for them; and d) plaintiff was identified in a line up as having been a person who removed items from a store or stores without paying for them.

17. That the aforesaid false statements made by Vargas constituted material evidence that was likely to influence a judge or jury on plaintiff's innocence or guilt.

18. That the prosecution of plaintiff was initiated by Vargas and the officers maliciously and without probable cause.

19. That as a result of the aforesaid prosecution, plaintiff was incarcerated until on or about March 4, 2018, was compelled to appear in Criminal Court on various occasions, and was otherwise deprived of his liberty and restricted in his right to travel.

20. That on or about April 5, 2018, all criminal charges against plaintiff were dismissed on the merits and the criminal proceeding terminated favorably to plaintiff.

21. That the actions of Vargas and the officers were intentional and malicious in nature, and all were performed within the course and scope of their employment with the NYPD and under color of state law.

22. That the actions of Vargas and the officers were intended to cause plaintiff extreme emotional distress and/or were undertaken with willful and/or reckless disregard of the risk of causing plaintiff extreme emotional distress.

23. That the actions of Vargas and the officers caused plaintiff to suffer extreme emotional distress.

24. That Vargas and the officers observed the illegal conduct of their fellow officers, had a reasonable opportunity to intervene to prevent or stop that conduct, but deliberately failed and refused to do so.

25. That as a result of the foregoing, plaintiff suffered a loss of liberty, embarrassment, humiliation, and economic loss, and suffered and continues to suffer emotional injuries, physical and psychological pain and suffering, extreme emotional distress, loss of enjoyment of life, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That the aforementioned actions of Vargas and the officers constituted an assault and battery upon plaintiff, for which Vargas and the officers are liable under NY State

law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned actions of Vargas and the officers constituted a false arrest and a false imprisonment of plaintiff, for which Vargas and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of Vargas and the officers constituted a malicious prosecution of plaintiff, for which Vargas and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST VARGAS AND THE OFFICERS
(Intentional Infliction of Emotional Distress Under NY State Law)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of Vargas and the officers constituted an intentional infliction of emotional distress, for which Vargas and the officers are liable under NY State law.

FIFTH CAUSE OF ACTION AGAINST VARGAS AND THE OFFICERS
(42 USC § 1983 Claim Arising From Fourth & Fourteenth Amendment Violations)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforementioned actions of Vargas and the officers constituted illegal searches and seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST VARGAS AND THE OFFICERS
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions by Vargas and the officers constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST VARGAS AND THE OFFICERS
(42 USC § 1983 Claim Arising From Failure to Intervene)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforementioned actions of Vargas and the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

41. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of Vargas and the officers.

NINTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim)

42. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

43. That prior to the incidents complained of herein, Vargas had engaged in a pattern of conduct involving false arrests, fabrication of evidence, and malicious prosecution.

44. That prior to the incidents complained of herein, the City knew that Vargas had engaged in a pattern of conduct involving false arrests, fabrication of evidence, and malicious prosecution.

45. That despite the City's prior knowledge that Vargas had engaged in a pattern of conduct involving false arrests, fabrication of evidence, and malicious prosecution, the City failed to intervene to prevent and/or stop this continual pattern of conduct and was deliberately to this unconstitutional pattern of conduct.

46. That the City's failure adequately to respond to Vargas' prior pattern of misconduct, and its deliberate indifference to that conduct, constituted a custom, pattern, and practice of the City with respect to Vargas' misconduct.

47. That the City's failure adequately to respond to Vargas' prior pattern of

misconduct, and its deliberate indifference to that conduct, was a proximate cause of the injuries sustained by plaintiff herein.

48. That by virtue of the foregoing, plaintiff is entitled to damages from the City pursuant to 42 U.S.C. § 1983 and *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

49. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Vargas and the officers, and attorney's fees against the City, Vargas, and the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
June 19, 2019

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

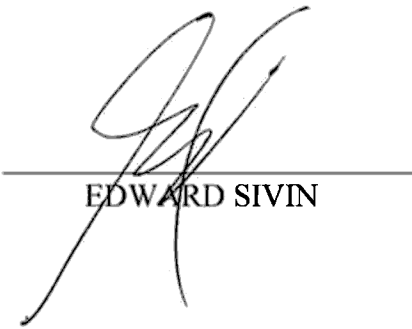
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 19, 2019



EDWARD SIVIN

Index No. 511821 Year 2019

SUPREME COURT OF THE STATE OF NEW YORK
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KEVIN GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. ano.,

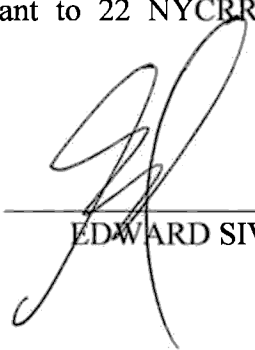
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
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Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 19, 2019